

25SMCV04654 25SMCV04654

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C08%2F17%2F2026

Source SHA-256: 8f26d267082a9ea2061466adbd59e91119574871be9a0b1636318b7920739f28

Case Number: 25SMCV04654 Hearing Date: August 17, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT 207

HEARING

DATE August 17, 2026

CASE

NUMBER 25SMCV04654

MOTION Motion to Set Aside/Vacate

Entry of Default and Default Judgment and Quash Service

MOVING

PARTIES Defendants Slower, LLC and Rikin

Shah

OPPOSING

PARTY Plaintiff KinectHQ, LLC

MOTION

This case arises from a dispute concerning employment placement services.

On August 29, 2025, Plaintiff KinectHQ, LLC ("Plaintiff") filed suit against Defendants Slower, LLC ("Slower") and Rikin Shah ("Shah") ("Defendants"), alleging four causes of action for (1) breach of oral contract;

(2) breach of implied in fact contract; (3) quantum meruit; and (4) fraud.

Defendants were served with a copy of the summons and complaint by substitute service on October 21, 2025, and Defaults were entered on December 5, 2025.

On April 14, 2026, the Court entered judgment against Defendants.

Defendants now move to set aside/vacate the default judgment and entries of default pursuant to Code of Civil Procedure section 473, subdivision (d) as a void judgment for lack of personal jurisdiction and to quash the service of summons Code of Civil Procedure pursuant to section 418.10. Plaintiff opposes the motion and Defendants reply.

REQUEST FOR JUDICIAL NOTICE

Defendants request judicial notice
of the following:

Exhibit 1: Proof of Service of Summons on Rikin
Shah and Declaration of Diligence, filed by plaintiff KinectHQ, LLC in this
action on December 1, 2025

Exhibit 2: Proof of Service of Summons on Slower,
LLC and Declaration of Diligence, filed by plaintiff KinectHQ, LLC in this
action on December 3, 2025

Judicial notice may be taken
of records of any court in this state.
(Evid. Code, § 452, subd. (d)(1).)

Because the proofs of service are part of the Court's record for this case, the Court may take judicial notice of them. (Ibid.) However, "while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files. Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof." (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875,

Accordingly, the Court takes judicial notice of the existence, filing, and legal consequences of the proofs of service filed in this matter as court records, but not the truth of the allegations contained therein.

EVIDENTIARY OBJECTIONS

The Court does not rule on the parties' evidentiary objections, as it has not relied on any of the evidence objected to.

ANALYSIS

"The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).)

In determining whether an order is void for purposes of section 473, subdivision (d), courts distinguish between orders that are void on the face of the record and orders that appear valid on the face of the record but are shown to be invalid through consideration of extrinsic evidence. This distinction may be important in a particular case because it impacts the procedural mechanism available to attack the judgment [or order], when the judgment [or order] may be attacked, and how the party challenging the judgment [or order] proves that the judgment [or order] is void.

An order is considered void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence. There is no time limit to attack a judgment void on its face. If the invalidity can be shown only through consideration of extrinsic evidence, such as declarations or testimony, the order is not void on its face. Such an order must be challenged

within the six-month time limit prescribed by section 473, subdivision (b), or by an independent action in equity.

(Pittman v. Beck Park Apartments Ltd.

(2018) 20 Cal.App.5th 1009, 1020-1021 [cleaned up] (hereafter Pittman).)

Defendants argue that the judgment is void because the summons was served on a WeWork receptionist in an office space Defendants shared, who informed the process server that the receptionist was not authorized to accept service of process on behalf of Defendants.

Indeed, this information appears on the face of both the proofs of service, indicating that service was effectuated on "Jane Doe-Receptionist with WeWork" and the Declarations of Diligence "Per employee with WeWork, not authorized to accept service[.]" (RJN Ex. 1-2.)

Further, the Shah Declaration indicates:

2. Slower rents office space from WeWork in the 12-story building located at 2211 Michelson Drive, Irvine, CA 92612.

3. Slower occupies a single suite in WeWork's 71,076 square-feet office space, along with many other tenants.

4. WeWork has no involvement in Slower's business.

5. WeWork's receptionists are not Slower's employees and are not authorized to accept service on behalf of Slower or me personally. Slower and WeWork do not share any employees.

6. I did not receive the summons and complaint in this action from anyone at WeWork.

7. The summons and complaint in this action were not served on me at my residence.

(Shah

Decl. ¶¶ 2-7.) Notwithstanding, it is not apparent, either from the face of the proofs of service or the Shah declaration that such service was defective or otherwise improper.

In lieu of personal delivery of the summons and complaint, service may be effectuated “by leaving a copy of the summons and complaint during usual office hours in the person’s office [...] with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where the copy of the summons and complaint were left.” (Code Civ. Proc., § 415.20, subd. (a).)

Although WeWork is undeniably a separate company from Slower, WeWork apparently rents office spaces to various businesses, which Shah’s declaration confirms.

(Shah Decl. ¶¶ 2-3.) Thus, the WeWork receptionist staffing the offices is “the person who is apparently in charge thereof[.]”

It does not matter that the receptionist indicated they are not authorized to accept service on behalf of Slower. The Proof of Service did not purport to effectuate personal service on an authorized agent of Slower. It evidences substitute service on the person apparently in charge of the office where Slower is located and where Shah works.

Thus, like *Lee v. Yan* (2025) 115 Cal.App.5th 975, cited by Plaintiff, Defendants have not overcome the presumption of proper service.

This is not a situation like *Chinese Theater, LLC v. Starline Tours USA, Inc.* (2025) 115 Cal.App.5th 1048 where the summons was left with a random bus washer employed by another entity that operated out of the same location, who was obviously not “apparently in charge” of the entity being served. The summons here was not left with a lower-level employee of one of the other companies operating out of the building; it was validly left with the WeWork receptionist for the offices, identifying herself as such. That person is “apparently in charge” if not actually in charge of the offices.

CONCLUSION

Therefore, finding Defendants have failed to rebut the presumption of proper service, the Court denies Defendants' motion in its entirety.

The Clerk of the Court shall provide notice of the Court's ruling.

DATED:

August 17, 2026 _____/s/_____

Michael E. Whitaker

Judge
of the Superior Court